

STATE OF NEW YORK

4989--A

Cal. No. 1410

2025-2026 Regular Sessions

IN SENATE

February 14, 2025

Introduced by Sens. HARCKHAM, MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- reported favorably from said committee and committed to the Committee on Consumer Protection -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public service law, the general business law and the public authorities law, in relation to requiring utility service providers to disclose planned rate increases to consumers within a certain amount of time

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public service law is amended by adding a new section
2 to read as follows:

3 § 28. Notice of planned rate increase for services. 1. Any gas corpo-
4 ration, electric corporation, water corporation or municipality, steam
5 corporation or telephone corporation shall be required to disclose to a
6 consumer any planned rate increase for services being rendered to such
7 consumer, within thirty days before such planned rate increase takes
8 effect.

9 2. (a) Any notification of a planned rate increase pursuant to this
10 section shall be communicated to the consumer in a clear and conspicuous
11 method which is sufficient to alert such consumer that such planned rate
12 increase is occurring.

13 (b) A consumer shall be notified in a separate communication outside
14 of any billing statement via phone, electronic mail, letter, text
15 message or any combination thereof that includes a statement of the
16 following:

17 (i) the amount of the rate increase;

18 (ii) the effective date of the increase; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (iii) where customers can get additional information pertaining to the
2 rate increase.

3 (c) Inclusion of such notification as part of any billing statement
4 shall not constitute compliance with this section.

5 3. Any gas corporation, electric corporation, water corporation or
6 municipality, steam corporation or telephone corporation shall provide
7 with any notification of a planned rate increase information on how a
8 consumer can contact the service provider.

9 § 2. The general business law is amended by adding a new section 399-
10 ww to read as follows:

11 § 399-ww. Notice of planned rate increases for cable and internet
12 services. 1. Any cable television company or internet service provider
13 shall be required to disclose to a consumer any planned rate increase
14 for services being rendered to such consumer, within thirty but no less
15 than seven days before such planned rate increase takes effect.

16 2. (a) Any notification of a planned rate increase pursuant to this
17 section shall be communicated to the consumer in a clear and conspicuous
18 method which is sufficient to alert such consumer that such planned rate
19 increase is occurring.

20 (b) A consumer shall be notified in a separate communication outside
21 of any billing statement via phone, electronic mail, letter, text
22 message or any combination thereof that includes a statement of the
23 following:

24 (i) the amount of the rate increase;

25 (ii) the effective date of the increase; and

26 (iii) where customers can get additional information pertaining to the
27 rate increase.

28 (c) Inclusion of such notification as part of any billing statement
29 shall not constitute compliance with this section.

30 3. Any cable television company or internet service provider shall
31 provide with any notification of a planned rate increase information on
32 how a consumer can contact the service provider and shall also include a
33 mechanism to allow for a consumer to cancel their service altogether.

34 § 3. Section 1020-cc of the public authorities law is amended by
35 adding a new subdivision 3 to read as follows:

36 3. Service providers shall be subject to the provisions of section
37 twenty-eight of the public service law.

38 § 4. This act shall take effect on the one hundred eightieth day after
39 it shall have become a law.